

25STCV25110 25STCV25110

County: los-angeles

Division: Civil Law and Motion

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Case Number: 25STCV25110 Hearing Date: June 30, 2026 Dept: 516

JUDGE JAMES I. MONTGOMERY

DEPARTMENT 516

Hearing Date: June 30, 2026

Case Name: Andrade v. Los Angeles County Metropolitan

Case No.: 25STCV25110

Motion: Motion to be Relieved as Counsel

Moving Party: Counsel for Plaintiff Patricia Andrade

Opposing Party: None

Tentative Ruling: The Motion to be Relieved as Counsel is denied.

Plaintiff's counsel –Jose Alfonso Ramirez-Gomez on behalf of Jacoby & Meyers Attorneys, LLP– seeks to be relieved as counsel of record for Plaintiff Patricia Andrade. No opposition was filed.

The motion to be relieved as counsel is denied.

Discussion

An attorney is entitled to withdraw upon the consent of the client, or without that consent if approved by the court. (Code Civ. Proc., § 284; Ramirez v. Sturdevant (1994) 21 Cal.App.4th 904, 915.) In the latter case, counsel must make a motion to be

relieved as attorney of record. The motion must be made using mandatory forms: Notice of Motion and Motion to be Relieved as Counsel – Civil (MC-051), Declaration (MC-052), and Proposed Order (MC-053). (Cal. Rules of Court, rule 3.1362, subd. (a), (b), (e).)

The declaration accompanying the motion to be relieved as counsel must state “in general terms and without compromising the confidentiality of the attorney-client relationship why a motion under Code of Civil Procedure section 284(2) is brought instead of filing a consent under Code of Civil Procedure section 284(1).” (Cal. Rules of Court, rule 3.1362, subd. (b).)

The notice to the client must be delivered by personal service, electronic means, or mail. If it is done via mail under Code of Civil Procedure section 1013, it must be accompanied by a declaration confirming the service address to be the most current residence or that it is the client's last known address, and the attorney has been unable to locate a more current address. (Cal. Rules of Court, rule 3.1362, subd. (d)(1)(A)-(B).) If the notice is served on the client by electronic service under Code of Civil Procedure section 1010.6 and rule 2.251, it must be accompanied by a declaration stating that the electronic service address is the client's current electronic service address. (Cal. Rules of Court, rule 3.1362, subd. (d)(2).) “If the party's residence is not known, any attempt of service pursuant to this subdivision may be made by delivering the notice or papers to the clerk of the court, for that party.” Code Civ. Proc., § 1011, subd. (b)(3)

Here, Attorney Ramirez-Gomez (“Counsel”) has complied with the Rules of Court by filing forms MC-051, MC-052, and MC-053. Counsel has submitted this motion to be relieved as counsel for a second time.

Counsel submitted a supporting declaration that provides an adequate explanation for his request to be relieved as counsel. Counsel asserts that, since January 7, 2026, he has not been able to contact Plaintiff after repeated efforts. Counsel also asserts that a private investigator was hired to locate Plaintiff and Plaintiff's emergency contact but was unable to locate either of them.

Counsel contends that he has made diligent efforts to locate Plaintiff and confirm the best method to serve her. The Court previously denied Counsel's motion for this same basis on May 4, 2026. Counsel must comply with the statute to properly serve Plaintiff with his motion and supporting papers.

Therefore, the Court denies Counsel's motion to be relieved as counsel.